

-
File No.: EXP202311565

RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 9, 2023, a complaint was received by the Spanish Agency for Data Protection regarding a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.). The facts brought to the attention of this authority in the aforementioned complaint were as follows: The complainant stated that the respondent is responsible for a surveillance camera located at a residence at ***ADDRESS.1, which is clearly oriented towards the public road, and where the respondent resides. The complainant provided a report filed with the Civil Guard regarding these facts and an image showing the location of the contested camera, installed next to the perimeter fence of said residence.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on August 31, 2023, the aforementioned complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on September 6, 2023, as evidenced by the acknowledgment of receipt in the file. On October 5, 2023, this Agency received a response indicating that the contested camera is located within the respondent's property, providing an image of said camera and another image of the field of view of the said camera, dated September 19, 2023.

THIRD: On February 11, 2025, the Presidency of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

FOURTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, through electronic notification, was notified on 12/02/2025, as evidenced by the acknowledgment of receipt in the file.

FIFTH: On 07/03/2025, a written statement of allegations was received from the respondent, which, in summary, includes the following considerations:

- Indicates that it is complying with the data protection security measure, as there is a surveillance sign installed and placed in a visible location.
- Provides an image of the exterior entrance of the residence, where the aforementioned sign is observed.

In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: That in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data by A.A.A. through the installed video surveillance system, with a camera that captures a proportional view of the public road.

SECOND: That from the documentation provided by both the complainant and the respondent in response to the transfer of the complaint, at the time of adopting the initiation agreement of this warning procedure, there was no evidence of the existence of informative signs in visible places that provided the information required under Article 22.4 of the LOPDGDD. Moreover, in the aforementioned response to the complaint, A.A.A. made no mention of the existence of such signs,

although when forwarding the complaint, it was indicated that photographs of the sign or signs warning of the existence of a monitored area should be provided, clearly showing the information contained in the sign, as well as its location.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the actions and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure will have a maximum duration of six months from the date of the initiation agreement.

After this period, it will expire, and, in

3/9

As a consequence, the file of proceedings shall be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one whose identity can be determined, directly or indirectly, particularly by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States." Furthermore, Article 4.8) of the GDPR defines the "processor" or "processor" as the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the security of persons and property, as well as their facilities. And Article 5.1 c) of the GDPR provides that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This means that in a specific processing operation, only the relevant personal data that are necessary to fulfill the purpose for which they are processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or these must be deleted. Under no circumstances shall the use of surveillance practices be permitted beyond the area subject to the installation, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause. In some cases, to protect private spaces, it may be necessary to record for the purpose of ensuring security.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/9

a portion of the public road. That is to say, the cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities. In that case, the responsible party is obliged to display visible informational signs that provide the information required in Article 22.4 of the LOPDGDD.

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data by A.A.A., in its capacity as the data controller, in accordance with Article 4.7 of the GDPR, as it determines the purposes and means of the installed video surveillance system, with a proportional capture of the public road, without there being visible informational signs providing the information required in Article 22.4 of the LOPDGDD, at least at the time the complaint was filed.

IV

Response to Allegations

In the allegations submitted regarding the initiation of the warning procedure, the party being complained against has indicated that it is complying with the data protection security measure, as it has installed a video surveillance sign placed in a visible location, providing an image of the exterior entrance of the residence, which thus certifies it.

In this regard, this Agency reiterates what was indicated in the initiation agreement, which already stated that the party being complained against did not mention the existence of informational signs in its response to the transferred action, nor did it provide any image of that possible sign.

Therefore, although in the allegations now presented by the party being complained against regarding the initiation agreement of this procedure it is claimed and certified that such a sign exists, providing an image of it at the exterior entrance of the residence, this does not prevent the fact that a breach of data protection regulations occurred previously due to the non-existence of this sign.

V

Obligations Regarding Video Surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR:

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.
- 4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.
- 5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and Resolutions” / “Regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section “Guides and Tools”).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the section “Guides and Tools”), which, through specific questions, allows assessing the situation of the controller regarding the processing of personal data it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Obligation Breached. Information to be Provided When Personal Data is Obtained from the Data Subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if applicable;
- f) if applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data concerning the data

subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, the respondent has installed a camera that captures a proportional part of the public road through the perimeter fences of the property, without there being visible signs providing the information required in Article 22.4 of the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

Consequently, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of the previously transcribed article, and all this without prejudice to the fact that, after the opening of this warning procedure, the respondent has installed an information sign at the external entrance of their home, with the information required in Article 22.4 of the LOPDGDD.

VII

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of limitation

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount "b) the rights of the data subjects pursuant to Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Infringements, states that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the limitation period, Article 72.1 of the LOPDGDD establishes:

"According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

VIII

Warning

In the event that an infringement of the provisions of the GDPR occurs, without prejudice to the provisions of Article 83 of the GDPR, among the corrective powers available to the Spanish Data

Protection Agency, as the supervisory authority, Article 58.2 of said Regulation provides for the following:

“2 Each supervisory authority shall have all of the following corrective powers indicated below:
(...) b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;”

Likewise, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” in its third paragraph provides that:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/9

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived (...).”

In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is considered that a warning should be issued to A.A.A. for the infringement of the aforementioned article.

Therefore, in accordance with the applicable legislation and the above, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/9

1403-100325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es